(a) *Medical care.* The term embraces the medical examination and/or treatment of individuals by medical personnel of the Army, Navy, Air Force, other Federal agencies outside of the Department of Defense, and civilian facilities, or by civilian doctors who are legally qualified without limitation to practice medicine and surgery in the area concerned, and medical facilities of the Canal Zone Government. Such care may include the furnishing of hospitalization, nursing and ambulance service, physical examinations, immunizations, prophylactic treatments, medicines, biologicals, and other similar medical services. Prostheses, hearing aids, spectacles, orthopedic footwear, and similar adjuncts to medical care may be furnished only where such adjuncts are authorized.

(b) *Army.* The Army consists of:

(1) The Regular Army.

(2) The Army National Guard of the United States.

(3) The Army National Guard while in the service of the United States.

(4) The Army National Guard while performing duty or training under sections 316 and 502–505 of title 32, United States Code.

(5) The Army Reserve.

(6) All persons appointed or enlisted in or conscripted into the Army without component.

(c) *Active duty.* Active duty is defined as full-time duty in the active military service of the United States, including:

(1) Service on the active list.

(2) Full-time training duty.

(3) Annual training duty.

(4) Attendance (while in active military service) at a school designated by law or by the Secretary as a service school; and

(5) Full-time training or other full-time duty performed by a member of the Army National Guard under sections 316 and 502–505 of title 32, United States Code, for which the member is entitled to pay from the United States or which he has been authorized to perform without pay.

(d) *Inactive duty training.* Inactive duty training is defined as duty prescribed for Reserve components under section 301 of title 37, United States Code, or any other provision of law, and special additional duties authorized by the Secretary and performed by them on a voluntary basis in connection with the prescribed training or maintenance activities of the units to which they are assigned. It includes training of a member of the Army National Guard in accordance with regulations prescribed under section 502 of title 32, United States Code, for which the member is entitled to pay from the United States or which he has been authorized to perform without pay.

§ 577.2 *For whom authorized and manner provided—*(a) *Persons entitled to medical care.* The following are entitled to and will be provided medical care at the expense of Army Medical Service funds:

(1) Members of the Army.

(2) Cadets of the United States Military Academy.

(3) Members of the Reserve Officers' Training Corps of the Army during their attendance at training camps including physical examinations required and immunizations required.

(4) Applicants for enlistment or reenlistment in the Army and registrants under the Universal Military Training and Service Act limited to necessary physical and mental examinations, except as provided in subparagraphs (5) and (6) of this paragraph.

(5) Individuals listed in subparagraph (4) of this paragraph whose physical fitness for military service cannot be determined without hospital study.

(6) Individuals listed in subparagraph (4) of this paragraph except registrants under the Universal Military Training and Service Act, who suffer acute illnesses and injuries while awaiting or undergoing processing at recruiting main stations or at Armed Forces Induction and Examining Stations (limited to emergency medical care, including hospitalization).

(7) Prisoners awaiting trial by courts-martial or serving sentences as a result thereof.

(8) Prisoners of war, persons interned by the Army, and other persons in military custody or confinement.

(9) Civilian seamen in the service of vessels operated by the Department of the Army.

(10) Civilian employees of the Army will be afforded "on-the-job" medical and surgical service through the Occupational Health Service of the Army.

(11) The lawful wife or the dependent lawful husband (spouses) and children who are dependents of members of the uniformed services. For definition of the terms "uniformed services" and "member of a uniformed service" and for restrictions, see §§ 577.60 to 577.70.

(12) Retired Army members placed on the Temporary Disability Retired List who require periodic physical examinations.

(b) *Priority of medical treatment facilities.* (1) Medical care for personnel enumerated in paragraph (a) (1) to (10) of this section will be through the following means in order of the priority of the listings:

(i) Medical treatment facilities.

(ii) Medical treatment facilities of the Navy or Air Force where Army medical treatment facilities are not readily available or accessible.

(iii) Medical treatment facilities of Federal agencies outside the Department of Defense where facilities in paragraph (a) of this section and this paragraph are not readily available or accessible.

(iv) Civilian medical treatment facilities including civilian physicians where facilities listed in subdivisions (i), (ii) and (iii) of this subparagraph are not available.

(2) Medical care for persons enumerated in paragraph (a) (11) of this section will be provided through the following means:

(i) Medical treatment facilities of the uniformed services subject to the availability of space and facilities and the capabilities of the professional staff.

(ii) Civilian medical treatment facilities including civilian physicians and surgeons subject to the terms and conditions prescribed in §§ 577.60 to 577.70.

(3) Medical care for persons enumerated in paragraph (a) (12) of this section will be provided through the following means:

(i) Army medical treatment facilities.

(ii) Medical treatment facilities of the Navy or Air Force subject to the availability of space and facilities and the capabilities of the professional staff.

(iii) Medical treatment facilities of the Veterans' Administration upon request of the Department of the Army.

(c) *Additional persons who may be afforded medical care.* (1) Persons, in addition to those enumerated in paragraph (a) of this section, may be afforded medical care at Army medical treatment facilities as prescribed in pertinent Army regulations.

(2) Persons, in addition to those enumerated in paragraph (a) of this section, may be afforded medical care in uniformed services medical treatment facilities under terms and conditions as prescribed in §§ 577.60 to 577.70.

[AR 40-101, July 30, 1958] (Sec. 3012, 70A Stat. 157; 10 U. S. C. 3012)

[SEAL] HERBERT M. JONES,
Major General, U. S. Army,
The Adjutant General.

[F. R. Doc. 58-7359; Filed, Sept. 10, 1958; 8:45 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1728]

[Utah 011437]

UTAH

WITHDRAWING LANDS FOR USE OF FOREST SERVICE, DEPARTMENT OF AGRICULTURE AS THE DESERT EXPERIMENTAL RANGE; REVOKING EXECUTIVE ORDER NO. 6012 OF FEBRUARY 1, 1933

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to valid existing rights the following-described public lands in Utah are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining but not the mineral-leasing laws nor the act of July 31, 1947 (61 Stat. 681; 30 U. S. C. 601–604) as amended, and reserved for use of the Forest Service, Department of Agriculture, as an experimental range in furtherance of the act of May 22, 1928 (44 Stat. 699; 16 U. S. C. 1946 ed., Sup. V, secs. 581, 581a–581k) as amended:

SALT LAKE MERIDIAN

T. 24 S., R. 17 W.,
Secs. 1 to 4, inclusive;
Secs. 9 to 36, inclusive.
T. 24 S., R. 18 W.,
Secs. 25 and 36.
T. 25 S., R. 17 W.

T. 25 S., R. 18 W.,
Secs. 1 and 2;
Secs. 11 to 14, inclusive;
Secs. 22 to 28, inclusive;
Secs. 33 to 36, inclusive.

The areas described aggregate 55,680 acres.

2. Executive Order No. 6012 of February 1, 1933, which withdrew the lands described in paragraph 1 of this order for use of the Department of Agriculture as an agricultural range experiment station, is hereby revoked.

ROGER ERNST,
Assistant Secretary of the Interior.

SEPTEMBER 5, 1958.

[F. R. Doc. 58-7362; Filed, Sept. 10, 1958; 8:46 a. m.]

[Public Land Order 1729]

[Fairbanks 018557]

ALASKA

WITHDRAWING PUBLIC LANDS FOR USE OF THE BUREAU OF LAND MANAGEMENT AS AN ADMINISTRATIVE SITE (FORT YUKON AREA)

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Alaska are hereby withdrawn from all forms of appropriation under the public land laws, including the mining but not the mineral-leasing laws nor disposals under the act of July 31, 1947 (61 Stat. 681, 69 Stat. 367; 30 U. S. C. 601-604) as amended, and reserved for use of the Bureau of Land Management as an administrative site:

FORT YUKON AREA

Beginning at a point on line 8-9 of U. S. Survey No. 3191, which bears N. 60°11' E., 1,650 feet from Corner No. 9 of U. S. Survey No. 3191; thence by metes and bounds,
S. 29°49' E., 264 feet;
N. 60°11' E., 825 feet;
N. 29°49' W., 264 feet to a point on line 8-9 of U. S. Survey No. 3191;
S. 60°11' W., 825 feet to the point of beginning.

The tract described contains approximately 5 acres.

ROGER ERNST,
Assistant Secretary of the Interior.

SEPTEMBER 5, 1958.

[F. R. Doc. 58-7363; Filed, Sept. 10, 1958; 8:46 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket Nos. 6584, 6585; FCC 58-815]

[Rules Amdt. 3-123]

PART 3—RADIO BROADCAST SERVICES

STANDARD BROADCAST STATIONS

In re applications of Albuquerque Broadcasting Company (KOB), Albuquerque, New Mexico; Docket No. 6584, File No. BMP-1738; for modification of construction permit. Albuquerque Broadcasting Company (KOB), Albuquerque, New Mexico; Docket No. 6585, File No. BL-1799, BZ-1583; for license to cover construction permit as modified and authority to determine operating power by direct measurement.

The amendment of § 3.25 of Part 3, the subject matter of which is reflected also in § 3.182 of the Commission's rules was (No. 75279), released May 9, 1944, and published in the FEDERAL REGISTER May 16, 1944 (9 F. R. 5178). Pursuant to the hearing, the Commission has on this date adopted its decision (FCC 58-814) concluding that the public interest would be served through the amendment of §§ 3.25 and 3.182 to permit the assignment of an additional Class I station on the frequency 770 kilocycles. Authority for the amendments is contained in sections 4 (i), 301, 303 (c), (d), (f) and (r), and 307 (b) and (d) of the Communications Act of 1934, as amended.

Accordingly, it is ordered, That §§ 3.25 and 3.182 are amended, effective October 17, 1958, as follows:

1. Section 3.25 is amended by adding a new paragraph (e) and modifying paragraph (a) to make reference thereto, as follows:

(a) To each of the channels below, except as provided in paragraph (e) of this section, there will be assigned one Class I station and there may be assigned one or more Class II stations within the continental limits of the United States operating limited time or daytime only: 640, 650, 660, 670, 700, 720, 750, 760, 770, 780, 820, 830, 840, 870, 880, 890, 1020, 1040, 1100, 1120, 1160, 1180, 1200, and 1210 kc. There also may be assigned to these frequencies Class II stations operating unlimited time in Alaska, Hawaii, Virgin Islands and Puerto Rico which will not deliver over 5 microvolts per meter groundwave day or night or 25 microvolts per meter 10 percent time skywave at night at any point within the continental limits of the United States. The power of the Class I stations on these channels shall not be less than 50 kw.

* * * * *

(e) On the frequency 770 kilocycles, two Class I stations may be assigned.

2. Section 3.182 is amended by modifying paragraph (a) (1) (i) to make a reference to amended § 3.25 as follows:

(i) The Class I stations in Group I-A are those assigned to the channels allocated by § 3.25 (a), on which except to the extent therein provided, duplicate nighttime operation is not permitted, that is, no other station is permitted to operate on a channel with a Class I station of this group within the limits of the United States (the Class II stations assigned the channels operate limited time or daytime only), and during daytime the Class station is protected to the 100 uv/m groundwave contour. Protection is given this class of station to the 500 uv/m groundwave contour from adjacent channel stations for both day and nighttime operations. The power of each such Class I station shall not be less than 50 kw.

3. Section 3.182 is further amended by adding to the Table in paragraph (v) the following note:

NOTE: See, however, § 3.25 with reference to the frequency 770 kilocycles.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interpret or apply secs. 301, 303, 307, 48 Stat. 1081, 1082, 1083; 47 U. S. C. 301, 303, 307)

Adopted: September 3, 1958.

Released: September 5, 1958.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 58-7404; Filed, Sept. 10, 1958; 8:54 a. m.]

[Docket No. 12538; FCC 58-844]

[Rules Amdt. 3-124]

PART 3—RADIO BROADCAST SERVICES

TABLE OF ASSIGNMENTS, TELEVISION BROADCAST STATIONS (PITTSBURGH, PENNSYLVANIA)

1. The Commission has before it for consideration the proposal set out in its notice of proposed rule making (FCC 58-684) released on July 18, 1958, and published in the FEDERAL REGISTER on July 23, 1958 (23 F. R. 5582) in response to a petition filed by Metropolitan Pittsburgh Educational Station, licensee of educational television Station WQED, Pittsburgh, Pennsylvania. The proposal was to change the educational reservation from Channel 22 to Channel 16 in Pittsburgh, Pennsylvania.[1] In the same notice the Commission ordered Telecasting, Inc., to show cause why its outstanding authorization for station WENS in Pittsburgh should not be modified to specify Channel 22 in lieu of Channel 16 at Pittsburgh.

2. No comments were filed in opposition to the proposed change. In response to the order to show cause, Telecasting, Inc., stated that its consents to the proposed shift in its frequency assignment but requested that the change in reservation from Channel 22 to Channel 16 and the modification of its authorization from Channel 16 to Channel 22 be made contingent one upon the other and to take effect on the 31st day following public notification thereof.

4. The Commission is of the view that adoption of the proposed change in educational reservation would serve the public interest and should be adopted. In view of the fact that Channel 16 was in operation for a period of three years and a large number of receivers are presently equipped for reception of that channel, the change made herein will provide an existing potential audience for the educational station and will thereby encourage the early inauguration of this additional educational service in Pittsburgh. The action taken herein makes it necessary to modify the out-

[1] Channel 22 was assigned to Pittsburgh as an educational channel in a Report and Order in Docket No. 12385, released on July 18, 1958 (FCC 58-683).